



POLICY RELATED TO SEXUAL HARASSMENT

Sexual harassment in the workplace is considered a violation of women's right to equality, life, and liberty. It creates an insecure and hostile work environment, which discourages women's participation in work, thereby adversely affecting their social and economic empowerment and the goal of inclusive growth.

TechAhead, in the light of "The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013" has incorporated this harassment prevention policy to ensure that the women employees at TechAhead feel safe, secure, and progressive.

Definition of sexual harassment:

Harassment shall be deemed as "Sexual Harassment" if the victim faces any one or more of the following unwelcome acts or behavior (whether directly or by implication) at the hands of the harasser: -

1. Sexual harassment shall mean and include any of the following: -
 - (a) Unwelcome sexual advances, requests, or demands for sexual favors, either explicitly or implicitly, in return for employment, promotion, examination, or evaluation of a person towards any company activity.
 - (b) Unwelcome sexual advances involving verbal, non-verbal, or physical conduct such as sexually colored remarks, jokes, letters, phone calls, e-mail, gestures, showing of pornography, lurid stares, physical contact, or molestation, stalking, sounds, display of pictures, signs, verbal, or non-verbal communication which offends the individual's sensibilities and affects her/his performance.
 - (c) Eve-teasing, innuendos and taunts, physical confinement against one's will, and likely to intrude upon one's privacy.
 - (d) Act or conduct by a person in authority which creates an environment in the workplace hostile or intimidating to a person belonging to the other sex.
 - (e) Conduct of such an act at the workplace or out about to an employee company or vice versa during employment; and

- (f) Any unwelcome gesture by an employee having sexual overtones.

Responsibilities Regarding Sexual Harassment:

All the employees of TECHAHEAD have a personal responsibility to ensure that their behavior is not contrary policy. Further, any Employee who has gathered any knowledge regarding harassment following this policy mediately without any delay report the same to the Internal Complaints Committee formed under this policy.

Any Employee being on the receiving end of any act of harassment shall: -

- i. Tell the accused that his/her behavior is unwelcome and ask
- (ii) Keep a record of incidents (dates, times, locations, possible witnesses, what happened, your response). It is not mandatory to have a record of events to file a complaint, but a record can strengthen your case and help you remember the details over time in case the complaint is not filed immediately.
- (iii) File a complaint as soon as possible. If, after asking the accused to stop his / her behavior, the harassment continues, report the abuse to the Complaints Committee formed for this purpose.

Complaint Mechanism:

Whether or not such conduct constitutes an offense under law or a breach of the service rules, an appropriate complaint mechanism in the form of the “Internal Complaints Committee” has been created in TECHAHEAD for redressal of the complaint made by the victim.

Internal Complaints Committee:

Any Employee being on the receiving end of any act of harassment by any other Employee shall without any reluctance or delay inform the Internal Complaints Committee formed under this policy.

TECHAHEAD has constituted an Internal Complaint Committee in compliance with the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 for redressal of sexual harassment complaints made by the victim employee and for ensuring time-bound treatment of such complaints. The said committee comprises a Presiding Officer who shall be a woman Employee working at a senior position at TechAhead, two members who are Employees at TechAhead a, and one member from amongst non- governmental organizations or associations committed to the cause of women person familiar with the issues relating to sexual harassment.

At present, the Internal Complaints

Committee comprises the following

persons w.e.f. 01.11.2023: -

Ms. Neha Tiwari (Chairperson)

Ms. Tanisha Bharadwaj (Member)

Ms. Muskan Bedi (Member)

Mr. Rohit Salwan (Member)

Ms. Esha Shekhar (External Member)

Responsibilities of Internal Complaint Committees:

1. Investigating every formal written complaint of sexual harassment.
2. Taking appropriate remedial measures to respond to any substantiated allegations of sexual harassment.
3. Discouraging and preventing employment-related sexual harassment.
4. Keeping the identity and the events of harassment confidential from the other Employees.

Redressal Procedure: -

A. Informal Resolution Options

1. When an incident of sexual harassment occurs, the victim of such conduct can communicate her disapproval and objections immediately to the harasser and request the harasser to behave decently.

2. If the harassment does not stop or if the victim is not comfortable with addressing the harasser directly, she can bring her concern to the attention of the Internal Complaints Committee for redressal of her grievances. The Internal Complaints Committee will thereafter undertake a prompt investigation to resolve the matter.

B. Complaints and Enquiry Process

1. Any employee with a harassment concern, who is not comfortable with the informal resolution options or has exhausted such options, may make a formal complaint in writing to the Chairperson of the Internal Complaints Committee constituted by the Management.
2. The complainant shall submit a copy of the said Complaint to the Complaint Committee along with supporting documents and the names and addresses of the witnesses in writing and can be in form of a letter, within 3 months from the date of occurrence of the alleged incident and in case of a series of incidents, within a period of 3 months from the date of last incident, sent in a sealed envelope. Provided that the Internal Complaint Committee is satisfied that the Employee was prevented from filing a complaint within the stipulated time frame of three months, the latter shall be allowed by the former to file the Complaint even after 3 (three) months.
3. Where any such complaint as mentioned in point no. 2 cannot be made in writing, the Presiding Officer or any Member of the Internal Complaint Committee shall render all reasonable assistance to the woman for making the complaint in writing.
4. The Accused (respondent) shall file his reply to the Complaint along with supporting documents and the names and addresses of the witnesses, within a period not exceeding 10 working days from the date of receipt of the documents. The Complaint committee has the right to terminate the inquiry proceedings or to give an ex-parte decision on the complaint, if the Aggrieved (complainant) or Accused (respondent) fails, without sufficient cause, to present herself or himself for 3 consecutive hearings convened by the Chairperson, as the case may be, provided that such termination or ex-parte order may not be passed without giving a notice in writing, 15 days in advance, to the party concerned. In conducting the inquiry, a minimum of 3 Members of the Complaints Committee including the chairperson shall be present.

5. The Complaint committee has the right to terminate the inquiry proceedings or to give an ex-party decision on the complaint, if the Aggrieved (complainant) or Accused (respondent) fails, without sufficient cause, to present herself or himself for 3 consecutive hearings convened by the Chairperson, as the case may be, provided that such termination or ex-party order may not be passed without giving a notice in writing, 15 days in advance, to the party concerned. In conducting the inquiry, a minimum of 3 Members of the Complaints Committee including the chairperson shall be present.
7. The parties shall not be allowed to bring in any legal practitioner to represent them in their case at any stage of the proceedings before the Complaints Committee. The Internal Complaints Committee shall conduct such investigations promptly and shall submit a written report containing the findings and recommendations to the Employer as soon as practically possible and in any case, not later than 10 days from the date of completion of inquiry. The Employer shall act upon the recommendation within 30 days of its receipt by him.
8. The Complaint's Committee report will also be made available to concerned parties.
9. The Committee shall be governed by such rules as framing by the Supreme Court orders or any other legislation enacted later.

Disciplinary Actions:

Disciplinary Action may include any one of the following: -

1. Issuance of letters of warning, copies of which will be placed in the personal file of the harasser; or
2. Immediate transfer; or
3. Immediate suspension without any pay or both; and
4. Stoppage of increment.
5. Degrading the rank.
6. Immediate termination

The quantum of the punishment shall depend upon the nature of the offense committed by the accused and the findings of the Internal Complaint Committee.

False or Malicious Complaint and False Evidence:

1. This policy has evolved as a tool to ensure that in the interest of justice and fair play, TECHAHEAD's employees have a forum to approach in the event of instances of sexual harassment. However, if on investigation it is revealed that the complaint was made with malicious intent and with the motive of maligning the concerned individual / tarnishing his/her image in the Company and to settle personal/professional scores, strict action will be taken against the complainant including immediate termination of employment of the Complainant without pay.

2. The employees who are victims of sexual harassment may, in addition to the above, seek legal remedies as may be provided under the various laws for the time being in force.

Confidentiality

TECHAHEAD understands that it is difficult for the victim to come forward with a complaint of sexual harassment and recognizes the victim's interest in keeping the matter confidential. To protect the interests of the victim, the accused person, and others who may report incidents of sexual harassment, confidentiality will be maintained throughout any investigatory process to the extent practicable and appropriate under the circumstances.

TECHAHEAD will ensure that victims or witnesses are not victimized or discriminated against while dealing with complaints of sexual harassment. However, anyone who abuses the procedure (for example, by maliciously putting an allegation knowing it to be untrue) will be subject to disciplinary actions as mentioned above.

Access to Reports & Documents:

All records of complaints, including contents of meetings, results of investigations, and other relevant material will be kept confidential by TECHAHEAD except where disclosure is required under disciplinary or other remedial processes or under any prevailing local/state/central law of the country.

Where any person/employee entrusted with the duty to handle or deal with the complaint, inquiry, or any recommendations or action to be taken under this policy discloses or publishes or makes the statements regarding the Complainant or witnesses that are against the Sexual Harassment Policy as enumerated in this HR Manual shall be liable to face disciplinary action as mentioned in this HR Manual.

Conclusion:

In conclusion, TECHAHEAD reiterates its commitment to providing its women employees, with a workplace free from harassment/ discrimination and where every employee is treated with dignity and respect. Further, it is proposed to the Employees of TECHAHEAD to move forward towards safe, secure, and enabling environment for every woman irrespective of age or employment status.